For Ministry Use Only
À l'usage exclusif du ministère

Ontario Corporation Number
Numéro de la compagnie en Ontario

1330170

1

Ministry of Consumer and Commercial Relations
Ontario

Ministère de la Consommation et du Commerce

CERTIFICATE
This is to certify that these articles are effective on

CERTIFICAT
Ceci certifie que les présents statuts entrent en vigueur le

DECEMBER 27 DÉCEMBRE, 1998

Director / Directeur
Business Corporations Act / Loi sur les sociétés par actions

Trans Code	Line No.	Stat.	Comp Type	Method Incorp.	Share
A (18)	0 (20)	0 (28)	A (29)	3 (30)	S (31)

Notice Req'd	Jurisdiction	
N (32)	ONTARIO (33–47)	A (57)

Form 4
Business Corporations Act

Formule numéro 4
Loi sur les compagnies

ARTICLES OF AMALGAMATION
STATUTS DE FUSION

1. The name of the amalgamated corporation is: / Dénomination sociale de la compagnie issue de la fusion:

CANADA BREAD COMPANY, LIMITED /
PAIN CANADA COMPAGNIE, LIMITEE

2. The address of the registered office is: / Adresse du siège social:

10 Four Seasons Place

(Street & No. or R.R. No. & if Multi-Office Building give Room No.)
(Rue et numéro ou numéro de la R.R. et, s'il s'agit d'un édifice à bureau, numéro du bureau)

Toronto — M9B 6H7

(Name of Municipality or Post Office) / (Nom de la municipalité ou du bureau de poste)
(Postal Code) / (Code Postal)

(Name of Municipality, Geographic Township) / (Nom de la municipalité, du canton) — in / dans le/la — (County, District or Regional Municipality) / (Comté, district, municipalité régionale)

3. Number (or minimum and maximum number) of directors is: / Nombre (ou nombres minimal et maximal) d'administrateurs:

Minimum of five (5); Maximum of twelve (12)

4. The director(s) is/are: / Administrateur(s):

First name, initials and last name / Prénom, initiales et nom de famille	Residence address, giving Street & No. or R.R. No., Municipality and Postal Code / Adresse personnelle, y compris la rue et le numéro, le numéro de la R.R., le nom de la municipalité et le code postal	Resident Canadian State Yes or No / Résident Canadien Oui/Non
See attached 1A		

CBR 162

First name, initials and surname	Residence Address	Resident Canadian State Yes or No
John L. Bragg	Collingwood Corner Cumberland County Nova Scotia B0M 1E0	Yes
Sarah A. Everett	93 Lyndhurst Avenue Toronto ON M5R 2Z8	Yes
Richard A. Lan	80 Westminster Road Chatham, New Jersey 07928 U.S.A.	No
David H. Lees	15189 Mount Wolfe Road R.R. #1 Bolton ON L7E 5R7	Yes
Charles J. Mayer	106 Desjardins Road St. Francois Xavier, Manitoba R4L 1B6	Yes
G. Wallace F. McCain	3 Thornwood Road Toronto ON M4W 2R8	Yes
J. Scott McCain	127 Buckingham Avenue Toronto ON M4N 1R5	Yes
Michael H. McCain	144 Riverview Drive Toronto ON M4N 3C8	Yes
Archibald D. McLean	81 Boulton Drive Toronto ON M4V 2V5	Yes
Thomas P. Muir	39 Blythe Hill North York ON M4N 1K3	Yes
John F. Petch	29 Glenrose Avenue Toronto ON M4T 1K3	Yes

5. A) The amalgamation agreement has been duly adopted by the shareholders of each of the amalgamating corporations as required by subsection **176 (4)** of the Business Corpora- tions Act on the date set out below.

A) Les actionnaires de chaque compagnie qui fusionne ont dûment adopté la convention de fusion conformément au paragraphe **176 (4)** de la Loi sur les compagnies à la date mentionée ci-dessous.

Check A or B	Cocher A ou B
X	

B) The amalgamation has been approved by the directors of each amalgamating corporation by a resolution as required by section **177** of the Business Corporations Act on the date set out below.
The articles of amalgamation in substance contain the provisions of the articles of incorporation of

B) Les administrateurs de chaque compagnie qui fusionne ont approuvé la fusion par voie de ré solution conformément à l'article **177** de la Loi sur les compagnies à la date mentionée ci-dessous. Les statuts de fusion reprennent essentiellement les despositions des statuts constituifs de

CANADA BREAD COMPANY, LIMITED

and are more particularly set out in these articles.

et sont énoncés textuellement aux présents statuts.

Names of amalgamating corporations Dénomination sociale des compagnies qui fusionnent	Ontario Corporation Number Numéro de la compagnie en Ontario	Date of Adoption/Approval Date d'adoption ou d'approbation
CANADA BREAD COMPANY, LIMITED/ PAIN CANADA COMPAGNIE, LIMITEE	1273210	December 15, 1998
HAMILTON BAKING COMPANY (1988) LIMITED	760783	December 15, 1998

6. Restrictions, if any, on business the corporation may carry on or on powers the corporation exercise.

Limites, sil y a lieu, imposées aux activités commerciales ou aux pouvoirs de la compagnie.

There are no restrictions on the business the Corporation may carry on or on the powers the Corporation may exercise.

7. The classes and any maximum number of shares that the corporation is authorized to issue.

Catégories et nombre maximal, s'il y a lieu, d'actions que la compagnie est autorisée à émettre:

(a) an unlimited number of Common Shares;

(b) 25,000 Preference Shares, issuable in series.

8. Rights, privileges, restrictions and conditions (if any) attaching to each class of shares and directors authority with respect to any class of shares which may be issued in series:

Droits, privilèges, restrictions et conditions, s'il y a lieu, rattachés à chaque catégorie d'actions et pouvoirs des administrateurs relatifs à chaque catégorie d'actions qui peut être émise en série:

The preferences, rights, conditions, restrictions, limitations and prohibitions attaching to the Preference Shares (hereinafter called the "Preference Shares"), as a class, and the common shares (hereinafter called the "Common Shares") shall be as follows:

(a) The directors of the Corporation may at any time or from time to time issue the Preference Shares in one (1) or more series, having such designations, having such rate or rates of preferential dividends with such dates of payment, being payable in such one (1) or more currencies at such rate or rates of exchange, being redeemable at such time or times with or without payment of a premium, having such sinking or other retirement fund or funds or without any sinking or other retirement fund, being subject to such purchase provisions by the Corporation, being redeemable at such price or prices and on such terms and conditions, having such conversion rights, or without conversion rights, and having such other preferences, rights, conditions, restrictions, limitations or prohibitions attaching thereto as shall be determined by resolution of the directors passed prior to the issue thereof, the whole subject to the following provisions and the issue of Articles of Amendment setting forth the designation, preferences, rights, conditions, restrictions, limitations or prohibitions attaching to the shares of such series;

(b) The Preference Shares shall be entitled to preference over the Common Shares and any other shares of the Corporation ranking junior to the Preference Shares with respect to the payment of dividends and in the distribution of assets in the event of any liquidation, dissolution or winding up of the Corporation, whether voluntary or involuntary, or other distribution of the assets of the Corporation among its shareholders for the purpose of winding up its affairs or the repayment of its capital; such dividends shall be payable quarterly when and as declared by the board of directors;

(c) The Preference Shares of each series shall rank on a parity with the Preference Shares of every other series with respect to priority in payment of dividends and in the distribution of assets in the event of any liquidation, dissolution or winding up of the Corporation, whether voluntary or involuntary, or other distribution of the assets of the Corporation among its shareholders for the purpose of winding up its affairs or the repayment of its capital;

(d) The holders of Preference Shares shall not be entitled (except as hereinafter specifically provided) to receive notice of or to attend any meeting of the shareholders of the Corporation or to vote at any such meeting (but shall be entitled to have mailed to them copies of the financial statements and the auditors' report thereon submitted to the annual meeting of shareholders) unless the Corporation shall fail to pay in the aggregate six (6) quarterly dividends on the Preference Shares of any one (1) series on the dates on which the same should be paid according to the terms thereof whether or not consecutive and whether or not such dividends have been declared and whether or not there are moneys of the Corporation

properly applicable to the payment of dividends; thereafter so long as any dividends on any Preference Shares remain in arrears the holders of the Preference Shares of all series shall be entitled to receive notice of all meetings of the shareholders of the Corporation and to attend thereat and shall be entitled to one (1) vote in respect of each Preference Share held and, without limiting the foregoing, voting separately and exclusively as a class to elect two (2) out of the total number of directors of the Corporation until all arrears of dividends on all Preference Shares shall have been paid, whereupon such rights shall cease until default shall again be made by the Corporation in payment of dividends on the Preference Shares of any one (1) series for an aggregate of six (6) quarterly dividends on the dates on which the same should be paid according to the terms thereof whether or not consecutive and whether or not such dividends have been declared and whether or not there are any moneys of the Corporation properly applicable to the payment of dividends, whereupon the holders of Preference Shares shall again be entitled to receive notice of all meetings of the shareholders of the Corporation and to attend thereat and to vote separately and exclusively as a class and otherwise as aforesaid until all arrears of dividends on all Preference Shares shall have been paid, and so on from time to time; nothing therein contained shall be deemed to limit the right of the Corporation from time to time to increase or decrease the number of its directors; notwithstanding anything contained in the Corporation's by-laws the term of office of all persons who may be directors of the Corporation at any time when the holders of Preference Shares become entitled to elect directors as herein provided or who may be appointed as directors thereafter and before a meeting of shareholders shall terminate at the next annual meeting of shareholders or at a general meeting which may be held at any time after the holders of the Preference Shares become entitled to elect directors upon not less than twenty-one (21) days written notice and shall be called by the Secretary or an Assistant Secretary of the Corporation upon the written request of the holders of at least one-tenth ($1/10^{th}$) of the outstanding Preference Shares and, in default of the Secretary or an Assistant Secretary calling such meeting within five (5) days of such request, may be called by any holder of Preference Shares; notwithstanding anything contained in the Corporation's by-laws, upon any termination of the voting rights of the holders of Preference Shares as herein provided the term of office of all persons who may then be directors of the Corporation and who were elected by the holders of Preference Shares, voting separately and exclusively as a class, shall terminate; notwithstanding anything contained in the by-laws of the Corporation the holding of one (1) Preference Share shall be sufficient to qualify a person for election by the holders of Preference Shares as a director of the Corporation; if a member of the board of directors of the Corporation elected by the holders of Preference Shares shall resign or for any other reason cease to be a director between meetings of shareholders, the vacancy may be filled by the board of directors and, if at such time the holders of Preference Shares are entitled to voting rights, the director appointed to fill such vacancy shall be a holder of Preference Shares; notwithstanding the foregoing provisions of this clause, the holders of Preference Shares shall be entitled to notice of meetings of shareholders called for the purpose of

authorizing the dissolution of the Corporation or the sale of its undertaking or a substantial part thereof;

(e) The Corporation shall not without, but may from time to time with (in addition to the authorization by a special resolution and any other authorization which may be necessary), the authorization of the holders of Preference Shares given as hereinafter specified apply for the issue of Articles of Amendment to delete or vary any preference, right, condition, restriction, limitation or prohibition attaching to the Preference Shares as a class or to create preference shares ranking in priority to or on a parity with the Preference Shares;

(f) Any authorization given by the holders of Preference Shares shall be deemed to have been sufficiently given if it shall have been given by a resolution passed at a general meeting of the holders of the Preference Shares duly called and held upon not less than twenty-one (21) days' notice at which the holders of at least a majority of the outstanding Preference Shares are present or are represented by proxy and carried by the affirmative vote of not less than two-thirds (2/3rds) of the votes cast at such meeting; if at any such meeting the holders of a majority of the outstanding Preference Shares are not present or represented by proxy within one-half (1/2) hour after the time appointed for such meeting then the meeting shall be adjourned to such date not less than twenty-one (21) days thereafter and to such time and place as may be designated by the chairman, and not less than fifteen (15) days' written notice shall be given of such adjourned meeting; at such adjourned meeting, the holders of Preference Shares present or represented by proxy may transact the business for which the meeting was originally called and a resolution passed thereat by the affirmative vote of not less than two-thirds (2/3rds) of the votes cast at such meeting shall constitute the authorization of the holders of the Preference Shares; on every poll taken at any such meeting or adjourned meeting, every holder of Preference Shares shall be entitled to one (1) vote in respect of each Preference Share held; subject to the foregoing, the formalities to be observed in respect of the giving of notice of any such meeting or adjourned meeting and the conduct thereof shall be those from time to time prescribed in the by-laws of the Corporation with respect to meetings of shareholders; and

(g) In the provisions herein contained attaching to the Preference Shares as a class, "in priority to" and "on a parity with" have reference to the order of priority in payment of dividends and in the distribution of assets in the event of any liquidation, dissolution or winding up of the Corporation, whether voluntary or involuntary, or distribution of the assets of the Corporation among its shareholders for the purpose of winding up its affairs or the repayment of its capital.

(h) The Common Shares shall be subject to the prior preferences, rights, conditions, restrictions, limitations and prohibitions attaching to the Preference Shares (and each series thereof) and any other shares in the capital of the Corporation ranking in priority to the Common Shares, and the Common Shares shall entitle the holders thereof:

(i) to one (1) vote in respect of each of the Common Shares held at all meetings of the shareholders of the Corporation, other than meetings of the holders of another class of shares of the Corporation;

(ii) to receive dividends, if, as and when declared by the directors of the Corporation;

(iii) subject to the foregoing, to receive the remaining property and assets of the Corporation in the event of any liquidation, dissolution or winding-up of the Corporation, whether voluntary or involuntary, or other distribution of the assets and/or property of the Corporation among its shareholders for the purpose of winding-up its affairs.

9. The issue, transfer or ownership of shares is/is not restricted and the restrictions (if any) are as follows:

L'émission, le transfert ou la propriété d'actions est/n'est pas restreinte. Les restrictions, s'il y a lieu, sont les suivantes:

None

10. Other provisions (if any):

Autres dispositions, s'il y a lieu:

Provide that the directors of the Corporation may pass by-laws:

(a) for borrowing money on the credit of the Corporation; or

(b) for issuing, selling or pledging securities of the Corporation; or

(c) for charging, mortgaging, hypothecating or pledging all or any of the real and personal property of the Corporation, both present and future, including book debts and unpaid calls, rights, powers, franchises and undertakings, to secure any securities or any money borrowed or any other debt, or any other obligation or liability of the Company;

but no by-law for any of the purposes hereinbefore mentioned shall be effective until it has been confirmed by at least two thirds (2/3rds) of the votes cast at a general meeting of shareholders duly called for considering it.

11. The statements required by subsection 178(2) of the Business Corporations Act are attached as Schedule "A".

Les déclarations exigées aux termes du paragraphe 178(2) de la Loi sur les compagnies constituent l'annexe "A".

12. A copy of the amalgamation agreement or directors resolutions (as the case may be) is/are attached as Schedule "B".

Une copie de la convention de fusion ou les résolutions des administrateurs (selon le cas) constitute(nt) l'annexe "B".

These articles are signed in duplicate

Les présents statuts sont signés en double exemplaire.

Names of the amalgamating corporations and signatures and descriptions of office of their proper officers	Dénomination sociale des compagnies qui fusionnent, signature et fonction de leurs dirigeants régulièrement désignés.

CANADA BREAD COMPANY, LIMITED

By: _____
Larry Palko, Corporate Secretary

By: _____
T. TAVARES
EXEC. V.P.

HAMILTON BAKING COMANY (1988) LIMITED

By: _____
Larry Palko, Secretary

SCHEDULE "A"

STATEMENT OF DIRECTOR OR OFFICER

I, Larry Palko, of the City of Burlington, in the Regional Municipality of Halton, in the Province of Ontario, solemnly state that:

1. I am the Senior Vice President and Corporate Secretary of **Canada Bread Company, Limited**, one of the amalgamating corporations (hereinafter called the "Corporation") and as such have personal knowledge of the matters herein deposed to.

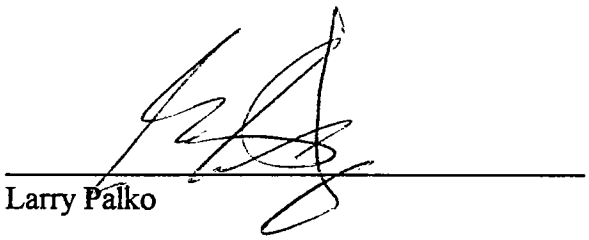
2. There are reasonable grounds for believing that:

   (a) the Corporation is and the amalgamated corporation will be able to pay its liabilities as they become due;

   (b) the realizable value of the assets of the amalgamated corporation will not be less than the aggregate of its liabilities and stated capital of all classes; and

   (c) no creditor of the Corporation will be prejudiced by the amalgamation.

DATED this 15 day of December, 1998.



Larry Palko

SCHEDULE "A"

STATEMENT OF DIRECTOR OR OFFICER

I, Larry Palko, of the City of Burlington, in the Regional Municipality of Halton, in the Province of Ontario, solemnly state that:

7. I am the President and Secretary of **Hamilton Baking Company (1988) Limited**, one of the amalgamating corporations (hereinafter called the "Corporation") and as such have personal knowledge of the matters herein deposed to.

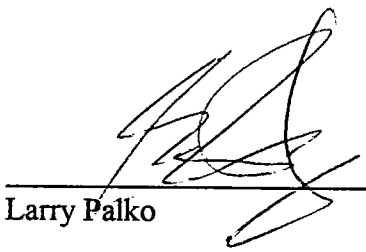
8. There are reasonable grounds for believing that:

   (a) the Corporation is and the amalgamated corporation will be able to pay its liabilities as they become due;

   (b) the realizable value of the assets of the amalgamated corporation will not be less than the aggregate of its liabilities and stated capital of all classes; and

   (c) no creditor of the Corporation will be prejudiced by the amalgamation.

DATED this 15 day of December, 1998.



Larry Palko

SCHEDULE B
CERTIFIED RESOLUTIONS OF THE BOARD OF DIRECTORS
OF
CANADA BREAD COMPANY, LIMITED

WHEREAS the Corporation owns all of the issued and outstanding shares of Hamilton Baking Company (1988) Limited ("Hamilton Baking");

AND WHEREAS the Corporation wishes to amalgamate with Hamilton Baking, and continue as one corporation pursuant to the provisions of Subsection 177(1) of the Act.

BE IT RESOLVED THAT

1. Effective December 27, 1998 the Corporation amalgamate with Hamilton Baking, and continue as one corporation (the "Amalgamated Corporation") under the name of "CANADA BREAD COMPANY LIMITED", or its name in the french language being "PAIN CANADA COMPAGNIE, LIMITEE" and the Amalgamated Corporation may be designated by either such name;

2. Upon the endorsement of a Certificate of Amalgamation pursuant to subsection 178(4) of the Act, all shares in the capital of Hamilton Baking, including all shares which have been issued and are outstanding at the date hereof shall be cancelled without any repayment of capital in respect thereof;

3. The Articles of Amalgamation shall be the same as the Articles of the Corporation.

4. No securities shall be issued and no assets shall be distributed by the Amalgamated Corporation in connection with the amalgamation.

5. Any officer or director of the Corporation be and is authorized to do all things and execute all instruments and documents necessary or desirable to carry out and give effect to the foregoing.

CERTIFIED to be a true copy of a resolution of the board of directors of the Corporation passed by the board on the 15th day of December, 1998, which resolution remains in full force and effect unamended as at this date.

DATED the 15 day of December, 1998.

Larry Palko, Corporate Secretary

SCHEDULE B
CERTIFIED RESOLUTIONS OF THE DIRECTOR

OF

HAMILTON BAKING COMPANY (1988) LIMITED

WHEREAS the Canada Bread Company, Limited ("Canada Bread") owns all of the issued and outstanding shares of the Corporation;

AND WHEREAS the Corporation wishes to amalgamate with Canada Bread and continue as one corporation pursuant to the provisions of Subsection 177(1) of the Act.

BE IT RESOLVED THAT

1. Effective December 27, 1998 the Corporation amalgamate with Canada Bread, and continue as one corporation (the "Amalgamated Corporation") under the name of "CANADA BREAD COMPANY LIMITED", or its name in the french language being "PAIN CANADA COMPAGNIE, LIMITEE" and the Amalgamated Corporation may be designated by either such name;

2. Upon the endorsement of a Certificate of Amalgamation pursuant to subsection 178(4) of the Act, all shares in the capital of the Corporation including all shares which have been issued and are outstanding at the date hereof shall be cancelled without any repayment of capital in respect thereof;

3. The Articles of Amalgamation shall be the same as the Articles of Canada Bread;

4. No securities shall be issued and no assets shall be distributed by the Amalgamated Corporation in connection with the amalgamation.

5. Any officer or director of the Corporation be and is authorized to do all things and execute all instruments and documents necessary or desirable to carry out and give effect to the foregoing.

CERTIFIED to be a true copy of a resolution of the director of the Corporation passed by the director on the 15 day of December, 1998, which resolution remains in full force and effect unamended as at this date.

DATED the 15 day of December, 1998.

Larry Palko, Corporate Secretary